

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. and OCEAN NETWORK EXPRESS
(NORTH AMERICA) INC. –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)**

**OCEAN NETWORK EXPRESS (NORTH AMERICA), INC. MOTION TO COMPEL
BUREAU OF ENFORCEMENT TO RESPOND TO
INTERROGATORIES AND REQUESTS FOR ADMISSIONS**

Putative Respondent Ocean Network Express (North America), Inc. (ONE NA), respectfully moves to compel the Bureau of Enforcement (BOE) to respond to Interrogatories 1,2,6,9-14, 18, and 19, and Requests for Admissions 4 and 21.

INTRODUCTION

As illustrated in this motion and the corresponding motion being filed concurrently by ONE, BOE has treated discovery requests as an exercise in gamesmanship, rather than an obligation to provide information in good faith. Among other things, BOE has provided responses that do not correspond to the question asked, feigned misunderstanding of questions to avoid giving a meaningful answer, failed to look further than its collective noses in searching for information, and declined to meaningfully respond to ONE NA's identification of deficiencies in BOE's responses.

SPECIFIC INTERROGATORIES/REQUESTS FOR ADMISSION

ONE NA seeks to compel responses to identified interrogatories and requests for admission. We address the interrogatories separately, in in each case largely seriatim,

grouping together those responses with the same basic deficiencies. The requests and responses in question are reproduced in full in Appendix A.

A. INTERROGATORIES

1. Response to Interrogatory 1

BOE's response to Interrogatory 1 is entirely non-responsive and illustrates BOE's disingenuous approach to discovery responses. BOE pretends that this question seeks to duplicate the information it provided in its Initial Disclosures. That is obviously untrue, and no fair reading of the question could lead to such a misunderstanding. Indeed, BOE asked the very same question of ONE NA, in almost the same words, and got a response that related directly to the question.¹

The question ONE NA posed to BOE is about who specifically *participated* in *responding* to ONE NA's *interrogatories*, not who generally may have knowledge of matters involved in the case (the subject of the Initial Disclosures). The request thus does not duplicate anything in the Initial Disclosures, but rather asks about an event that occurred well after the Initial Disclosures. ONE NA is entitled to know who contributed to the responses, and to which specific requests they participated in responding.

2. Responses to Interrogatories 2, 6, and 9-14

The main deficiency of each of these responses by BOE is reliance on an unrecognized extension of the "work product" doctrine to justify its refusal to provide a meaningful response. The FMC Rules specifically provide that: "An interrogatory may

¹ BOE's Interrogatory 1 asked ONE NA to: "Identify and name each person who furnished or assisted in furnishing information responsive to any Interrogatory or portion thereof and identify the Interrogatories to which such person furnished information or records."

relate to any matter that may be inquired into under § 502.141(e) and (f). An interrogatory is not objectionable merely because it asks for an opinion or contention that relates to fact or the application of law to fact...” Rule 145(a)(2). Each of the interrogatories identified above (and quoted in Attachment A) asks about BOE’s contentions of fact or the application of law to fact. They are thus squarely within the scope of legitimate inquiry. Further, the work product doctrine is, on its face, inapplicable to interrogatory answers. Rather, it applies only to documents and other tangible things. Fed. R. Civ. P. 26(b)(3) (“Ordinarily, a party may not discover **documents and tangible things** that are prepared in anticipation of litigation or for trial by or for another party or its representative (including the other party’s attorney, consultant, surety, indemnitor, insurer, or agent)”) (emphasis added).

ONE NA recognizes that such matters may sometimes be deferred to a later time, such as a prehearing conference. But the schedule in this case is highly compressed, involving neither a hearing nor a prehearing conference, so deferral would be inappropriate.

In addition to false reliance on the work product doctrine, particular BOE responses reflect additional deficiencies:

(a) Interrogatory 9 asks BOE to identify which employees at the FMC are involved in the process of deciding whether a particular entity is a “common carrier” (i.e., a VOCC or NVOCC). This is a pure question of fact, having nothing to do with mental impressions or opinions. Obviously, for example, some or all of the employees in the Bureau of Trade Analysis (BTA) may be involved in such decisions, but there may be a specific subset of such employees responsible for this task and there may be other employees in different Bureaus and Offices at the Commission who also play a role. The intent of the question was to identify persons from whom ONE NA might seek additional information.

(b) Interrogatories 11 and 12 ask BOE two simple, related questions. Interrogatory 11 asks if BOE contends that actions taken by ONE may be attributed to ONE NA, while Interrogatory 12 asks if BOE claims that ONE NA controls ONE. The purpose of the question is equally simple – to identify whether BOE is proposing a reverse theory of piercing the corporate veil (which normally applies where an owner controls a subsidiary or other inferior entity). The Presiding Officer has recently criticized BOE for playing coy about this issue and this is simply another instance of obfuscation by BOE.

(c) Interrogatories 13 and 14 test BOE’s unsupported allegation that ONE NA is an ocean common carrier. If BOE is correct that ONE NA is an ocean common carrier, then ONE NA would be authorized by the Shipping Act to enter into agreements with other ocean common carriers and would receive antitrust immunity, as do other ocean common carriers, for such filed and effective agreements and activities pursuant thereto. Further, Interrogatory 14 does not ask for an opinion at all. Rather, it is a question of fact readily answerable by review of the FMC’s own records. BOE’s failure to undertake such a simple search and provide a straightforward answer is illustrative of its gamesmanship.

3. Responses to Interrogatories 18 and 19.

BOE’s responses to these interrogatories are deficient by reason of its reliance on a phantom claim of work product, as discussed above. In addition, BOE’s response to Interrogatory 18 is non-responsive. The interrogatory asks about BOE’s claim, made in its response to ONE NA’s Motion to Dismiss, that ONE NA’s status as an ocean common carrier is shown by its complaint in the Texas Litigation. BOE does not address that question at all, but rather responds in a vague and meaningless way that ONE and ONE NA have some sort of business relationship.

B. REQUESTS FOR PRODUCTION OF DOCUMENTS

Document production from BOE has been miniscule and delayed. A few documents (but no privilege log) were produced on April 5, 2022. Finally, late in the day on April 19, 2022, BOE produced two additional documents and a belated privilege log.

Because ONE NA just received the privilege log, it has not had an opportunity to review BOE's claims (although some appear unjustified), it will defer moving to compel documents until it has had an opportunity to complete its review and attempt to confer with BOE (subject to not allowing BOE to run out the clock). There may well be issues regarding documents for which BOE has not claimed privilege, but in the interest of efficiency ONE NA will address all documents, if necessary, in a subsequent motion.

C. REQUESTS FOR ADMISSION

It is apparent from BOE's responses that it has not conducted a reasonable search, as it failed to identify information undoubtedly in the FMC's files that should have affected its responses. Remarkably (at least if good faith is assumed), BOE managed to locate a (later-corrected) FMC-1 Form that ONE NA filed in January 2018, on behalf of ONE before ONE began operations, but failed to identify the immediately subsequent correction of that FMC-1 Form, again before ONE began operations, including correspondence with FMC staff about the error and correction between the FMC and ONE NA. A neutral observer might think that BOE was trying not to find information contrary to its claims. The Presiding Officer should order BOE to conduct a new, adequate search, and revise all of its RFA responses. Failing that, we identify below two BOE responses that are especially egregious.

1. Response to Request for Admission 4

4. The FMC (or component parts thereof) recognize that ONE NA is not an ocean common carrier.

Answer: Lack of knowledge or information.

A search of Federal Maritime Commission (“FMC”) database of regulated entities revealed that ONE NA filed a FMC-1 on January 10, 2018, FMC assigned it organization number 027043, ONE NA listed itself as the “Legal Name of Registrant” with a street address: 8730 Stony Pointe Parkway, City: Richmond, State: Virginia, Zip Code: 23235, Contact Person Name at Headquarters, Jamie Henig, Company Website: www.one-line.com, Type of Registrant: VOCC, Comment – Describe Nature of Change(s): Initial FMC-1 filing for Ocean Network Express (post-merger of NYK Line, K Line, and MOL). ONE will be acting as self-publisher for purposes of tariff rule and rate publication.” ONE NA indicates its published “Tariff Site” as www.one-line.com.*

Link to the following lists all tariffs. Majority of the tariffs demonstrate ONE NA as a VOCC, https://ecommm.one-line.com/ecom/CUP_HOM_3102.do?sessLocale=en (last visited, Apr. 4, 2022). Link to Tariff code page for the ONE NA Bill of Lading Tariff, https://ecommm.one-line.com/ecom/CUP_HOM_3103.do?f_cmd=&pagerows=&sessLocale=en&ctgId=EEN_100006&prntMnuId=EEN_100006&mnuId=EEN_L00042&trfPfxCdParam=ONEY&trfNoParam=020&amdtSeqParam=0 (last visited, Apr. 4, 2022).

Link to Bill of Lading Tariff to search tariff rules and provides rules and definitions, specifically, ONEY-020, https://ecommm.one-line.com/ecom/CUP_HOM_3105.do?sessLocale=en# (last visited, Apr. 4, 2022).

On the ONE webpage, links to documents indicate a relationship between ONE NA, ONE and other VOCCs., https://ecommm.one-line.com/ecom/CUP_HOM_3105.do# (last visited Mar. 31, 2022).

Nowhere on the ONE webpage could BOE find an agency disclosure or other indicator that provides the shipping public, or BOE for that matter, an explanation as to ONE NA’s status.

BOE’s response is plainly non-responsive and illustrates the inadequacy of its search.

The request asks for the views not just of BOE, but other components of the FMC, such as BTA. It appears that BTA is responsible, among other things, for maintaining a list of VOCCs, which may be viewed on the FMC’s website. ONE NA is not included on that list, and the organization number BOE ascribes to ONE NA is instead assigned to ONE. This evidences BTA’s (or some other FMC component’s) determination that ONE NA is not a VOCC, yet the BOE response is entirely mute on the subject. BOE is fully aware that ONE NA is not included

in the Commission's VOCC list and it is hard to defend as reasonable a search that does not include: (i) BOE checking with BTA, and (ii) conducting a full search relating to ONE/ONE NA FMC-1 history (which would have shown that the January 2018 FMC-1 was corrected before ONE began operations).

2. Response to Request for Admission 21

21. The FMC has never asked or required ONE NA to file a form FMC-1.

Answer: Lack of knowledge or information.

BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny; however, a search of Federal Maritime Commission ("FMC") database of regulated entities revealed that ONE NA filed a FMC-1 on January 10, 2018, FMC assigned it organization number 027043, ONE NA listed itself as the "Legal Name of Registrant" with a street address: 8730 Stony Pointe Parkway, City: Richmond, State: Virginia, Zip Code: 23235, Contact Person Name at Headquarters, Jamie Henig, Company Website: www.one-line.com, Type of Registrant: VOCC, Comment – Describe Nature of Change(s): Initial FMC-1 filing for Ocean Network Express (post-merger of NYK Line, K Line, and MOL). ONE will be acting as self-publisher for purposes of tariff rule and rate publication." ONE NA indicates its published "Tariff Site" as www.one-line.com. On the ONE webpage, links to documents indicate a relationship between ONE NA, ONE and other VOCCs., https://ecomm.one-line.com/ecom/CUP_HOM_3105.do# (last visited Mar. 31. 2022).*

BOE's response to this request for admission is shocking. BOE apparently conducted no search at all to determine whether the FMC had ever asked or required ONE NA to file an FMC-1. Any such request would surely be reflected in the Commission's records. And again, BOE found one document that supports its litigation theory, but somehow missed the contemporaneous correction and correspondence related thereto.

ARGUMENT

For the reasons detailed above, BOE has provided insufficient responses to the

enumerated interrogatories and requests for admission.² BOE has repeatedly failed to answer questions or requests for admission, has given non-responsive answers, has played word games to evade responding, and has conducted a search (if any) that is entirely inadequate. BOE's objections do not excuse it from providing responses. "It is well established in federal practice that broad and sweeping objections to interrogatory and document requests are improper." *Precision Pine & Timber v. United States*, 2001 U.S. Claims LEXIS 181, *20 (internal citations omitted).

Accordingly, and in light of the highly-expedited nature of the proceeding, ONE NA respectfully requests that the Presiding Officer issue an order compelling BOE to ***immediately*** answer the above-identified requests for admission and interrogatories, including any searches requisite to a full and accurate response.

CONSULTATION

As required by the Commission's rules, ONE has attempted on several occasions to consult with BOE with respect to the deficiencies in its responses to discovery requests.

On April 14, 2022, ONE sent BOE a summary of the deficiencies of BOE's responses to its discovery requests and requested that it supplement its responses no later than 5:00 on April 19, 2022. As of the filing of this Motion, ONE has heard nothing further from BOE. On April 19 shortly after 5:00, BOE produced additional documents and a privilege log, reflecting responsive communications that had been withheld. Shortly thereafter on April 19, counsel for ONE requested a telephone conference. BOE was not

² This is not to suggest that BOE adequately responded to all of the other interrogatories and requests for production of documents. Rather, we have limited the motion to those we think most important and egregious.

available until late in the day on April 20, and the conference did not result in any commitments by BOE. Given the short time that remains in the discovery schedule, ONE was compelled to file this motion.

DATED: April 20, 2022

Respectfully submitted,

/s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 20th day of April, 2022, a true and correct copy of the foregoing Motion to Compel and Appendices were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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APPENDICES

APPENDIX A: Relevant BOE Responses to Discovery Requests

APPENDIX B: Certificate of Consultation

APPENDIX C: Certificate of Service (Requests for Admission)

APPENDIX D: Certificate of Attempts to Confer

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APPENDIX A

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ONE NA INTERROGATORIES and BOE RESPONSES

1. **Identify each person who furnished or assisted in furnishing information responsive to any interrogatory or portion thereof and identify the interrogatories to which such person furnished information or records.**

Answer: Objection. BOE objects to this request to the extent that it seeks information that is cumulative and duplicative of information disclosed in BOE's Initial Disclosures under 46 C.F.R. §502.141. Subject to and without waiving the forgoing objections, BOE refers to its initial disclosures. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

2. **Identify all witness BOE proposes to use to support any allegation made in the Order or to otherwise support its position.**

Answer: Objection. BOE objects to this request to the extent that it seeks information that is cumulative and duplicative of information disclosed in BOE's Initial Disclosures under 46 C.F.R. §502.141. Subject to and without waiving the forgoing objections, BOE refers to its initial disclosures. Furthermore, BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product via the revelation of trial witnesses prior to the completion of discovery. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

6. **Identify any precedent where the FMC stated that a vessel may have two simultaneous operators.**

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

9. **Identify all employees of the Commission involved in the determination of ocean common carrier status?**

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the

completion of discovery. The question is overly broad, ambiguous, and vague. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

10. **Identify all case law, regulation, statute, interpretive guidance, policy, or other precedent that BOE believes supports the proposition that the Commission has jurisdiction over an agent of a VOCC.**

Answer: Objection. BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. BOE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks a legal conclusion. Subject to and 16 without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

11. **State whether BOE claims that ONE NA is responsible for the actions of Ocean Network Express (North America) Inc. ("ONE") and if so, identify all information BOE believes supports that claim.**

Objection: BOE objects to this request as calling for an answer of multiple facts in a single request. BOE further objects to the phrase, "whether BOE claims that ONE NA is responsible for the actions of Ocean Network Express (North America) Inc. ("ONE")," as the request is confusing, nonsensical, requires additional definition, and seeks a legal conclusion that ONE NA is responsible for the actions of Ocean Network Express (North America) Inc. ("ONE"). BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

12. **State whether BOE claims that ONE NA controls ONE.**

Answer: Objection. BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. BOE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks a legal conclusion. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

13. **Does BOE take the position that ONE NA may attain antitrust immunity for agreements with VOCCs and/or MTOs if such agreements are filed at the FMC.**

Answer: BOE objects to this request as calling for an answer of multiple facts in a single request. BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. BOE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks a legal conclusion. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

14. **Identify any agreement on file at the FMC in the name of ONE NA.**

Answer: BOE objects to this request as overly broad, vague, and ambiguous to the extent that the term "any agreement" is not specifically defined and is subject to multiple interpretations. BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. BOE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks a legal conclusion. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

18. **Does BOE take the position that an agent of a VOCC becomes a VOCC by filing a complaint in court (along with the VOCC) seeking recovery of charges claimed to be owned to the VOCC.**

Answer: Objection. BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product prior to the completion of discovery. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required. Subject to and without waiving the foregoing objections, BOE provides the following information as it is under the control of ONE or ONE NA. BOE has made a reasonable inquiry. The information found appears to support a conclusion that ONE NA has a business relationship with ONE. The nature of that business relationship is uncertain. The ONE webpage states ONE NA is a "Regional Headquarters" 22 that performs "Regional Business Supervision." <https://us.one-line.com/standardpage/organization-structure> (last visited Mar. 24, 2022).

19. **If so, identify all information, including precedent, that BOE supports that position.**

Answer. BOE objects to this request to the extent that it calls for attorney work product. BOE further objects to this request as outside the permissible bounds of reasonable discovery to the extent it seeks a legal conclusion. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required. Subject to and without waiving the foregoing objections, BOE provides the following information as it is under the control of ONE or ONE NA.

ONE NA REQUESTS FOR ADMISSIONS and BOE RESPONSES

4. The FMC (or component parts thereof) recognize that ONE NA is not an ocean common carrier.

Answer: Lack of knowledge or information.

A search of Federal Maritime Commission (“FMC”) database of regulated entities revealed that ONE NA filed a FMC-1 on January 10, 2018, FMC assigned it organization number 027043, ONE NA listed itself as the “Legal Name of Registrant” with a street address: 8730 Stony Pointe Parkway, City: Richmond, State: Virginia, Zip Code: 23235, Contact Person Name at Headquarters, Jamie Henig, Company Website: www.one-line.com, Type of Registrant: VOCC, Comment – Describe Nature of Change(s): Initial FMC-1 filing for Ocean Network Express (post-merger of NYK Line, K Line, and MOL). ONE will be acting as self-publisher for purposes of tariff rule and rate publication.” ONE NA indicates its published “Tariff Site” as www.one-line.com.*

Link to the following lists all tariffs. Majority of the tariffs demonstrate ONE NA as a VOCC, https://ecomm.one-line.com/ecom/CUP_HOM_3102.do?sessLocale=en (last visited, Apr. 4, 2022). Link to Tariff code page for the ONE NA Bill of Lading Tariff, https://ecomm.one-line.com/ecom/CUP_HOM_3103.do?f_cmd=&pagerows=&sessLocale=en&ctgId=EEN_100006&prntMnuId=EEN_100006&mnuId=EEN_L00042&trfPfxCdParam=ONEY&trfNoParam=020&amdtSeqParam=0 (last visited, Apr. 4, 2022).

Link to Bill of Lading Tariff to search tariff rules and provides rules and definitions, specifically, ONEY-020, https://ecomm.one-line.com/ecom/CUP_HOM_3105.do?sessLocale=en# (last visited, Apr. 4, 2022).

On the ONE webpage, links to documents indicate a relationship between ONE NA, ONE and other VOCCs., https://ecomm.one-line.com/ecom/CUP_HOM_3105.do# (last visited Mar. 31, 2022).

Nowhere on the ONE webpage could BOE find an agency disclosure or other indicator that provides the shipping public, or BOE for that matter, an explanation as to ONE NA’s status.

21. The FMC has never asked or required ONE NA to file a form FMC-1.

Answer: Lack of knowledge or information.

BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny; however, a search of Federal Maritime Commission (“FMC”) database of regulated entities revealed that ONE NA filed a FMC-1 on January 10, 2018,

FMC assigned it organization number 027043, ONE NA listed itself as the “Legal Name of Registrant” with a street address: 8730 Stony Pointe Parkway, City: Richmond, State: Virginia, Zip Code: 23235, Contact Person Name at Headquarters, Jamie Henig, Company Website: www.one-line.com, Type of Registrant: VOCC, Comment – Describe Nature of Change(s): Initial FMC-1 filing for Ocean Network Express (post-merger of NYK Line, K Line, and MOL). ONE will be acting as self-publisher for purposes of tariff rule and rate publication.” ONE NA indicates its published “Tariff Site” as www.one-line.com. On the ONE webpage, links to documents indicate a relationship between ONE NA, ONE and other VOCCs., https://ecomm.one-line.com/ecom/CUP_HOM_3105.do# (last visited Mar. 31. 2022).*

APPENDIX B

CERTIFICATE OF ATTEMPT TO CONFER

The undersigned certifies that on the following dates attempts were made to confer with the Bureau of Enforcement with respect to the deficiencies in its responses to Ocean Network Express (North America), Inc. requests for admissions:

April 12, 2022

April 14, 2022

April 19, 2022

April 20, 2022

The Parties conferred on April 20.

DATED: April 20, 2022

BY: /s/



Rebecca A. Fenneman

Counsel for Ocean Network Express (North America), Inc.

APPENDIX C

CERTIFICATE OF SERVICE

I certify that on the 18th day of March, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

As required by Rule 148 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 CFR 502.148, the foregoing documents have also been served on the Secretary of the Federal Maritime Commission.

SECRETARY OF THE FEDERAL MARITIME COMMISSION:

William Cody, Secretary
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APPENDIX D

CERTIFICATE OF ATTEMPT TO CONFER

The undersigned certifies that on the following dates attempts were made to confer with the Bureau of Enforcement with respect to the deficiencies in its responses to Ocean Network Express (North America), Inc. requests for admissions:

April 12, 2022

April 14, 2022

April 19, 2022

April 20, 2022

The Parties conferred on April 20.

DATED: April 20, 2022

BY: /s/

Rebecca A. Fenneman

Counsel for Ocean Network Express (North America), Inc.

APPENDIX E

CERTIFICATE OF SERVICE

I certify that on the 18th day of March, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

As required by Rule 148 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 CFR 502.148, the foregoing documents have also been served on the Secretary of the Federal Maritime Commission.

SECRETARY OF THE FEDERAL MARITIME COMMISSION:

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